



POLICE DEPARTMENT

December 10, 2007

MEMORANDUM FOR: Police Commissioner

Re. Lieutenant Robert Goldberg
Tax Registry No. 915809
Queens Court Section
Disciplinary Case No. 82266/06

The above-named member of the Department appeared before me on June 18, 2007 and August 28, 2007, charged with the following:

1. Said Lieutenant Robert Goldberg, assigned to Queens Court Section, on July 22, 2005, while on duty, did wrongfully and without just cause fail to supervise a member of the service under his supervision to wit: said Lieutenant became aware of a verbal altercation between a uniformed member of service and a member of the Department of Correction, and failed to investigate the matter himself or make appropriate Department notifications. (*As amended*)

P.G. 202-13 Page 1, Paragraph 1 - LIEUTENANT – PLATOON COMMANDER

The Department was represented by Beth Douglas, Esq., Department Advocate's Office and Respondent was represented by Peter Brill, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

EVIDENCEThe Department's Case

The Department called Police Administrative Aide Trellis Horton, Wanda Hines, and Paulette Harper as witnesses.

Police Administrative Aide Trellis Horton

Horton, who has been assigned to Queens Central Booking (QCB) since 1984, testified that she was scheduled to work a 0730 to 1530 hours tour of duty on July 22, 2005. She arrived at QCB at 0726 hours and signed in at the desk at 0730 hours. At 0732 hours, she saw Correction Officer Wanda Hines standing with two male prisoners, who were wearing orange jumpsuits, near the bathroom which is about 15 feet away from the desk. Hines greeted Horton, using her nickname, by calling out, "Hi Trellie!" Hines then complained, "I can never get in the men's room." Horton did not respond to this comment.

About three minutes later, Horton was standing next to Hines when Police Officer James Grimes came out of the men's room. Horton heard Grimes ask Hines, "What the fuck you looking at?" Hines responded that Grimes was "a racist motherfucker." Horton described their voices as "slightly" raised. Grimes told Horton that she was "an 800 pound fucking black bitch," and that her mother was "an 800 pound fucking black bitch," and that her father was "an 800 pound fucking black bitch." For about five minutes, they exchanged similar insults with each other. Horton noticed that Hines appeared to be "very upset." Horton saw the Respondent standing at the desk and Sergeant Giorgi seated at the desk. They remained there. She did not see either of them speak to Grimes or Hines. She

did not speak to Hines after the verbal altercation ended. Later, the Duty Captain appeared at QCB and interviewed Horton. After the Duty Captain left QCB, the Respondent asked Horton, "What did you hear?" Horton related the racial insults that she had heard Grimes and Hines exchanging.

On cross-examination, Horton testified that during the three minute period before Grimes came out of the men's room, she and Hines did not have any conversation. Horton acknowledged that although it seemed like Grimes and Hines had exchanged insults for five minutes, she was not really certain how long the incident had actually lasted and she agreed that it might have lasted only 20 to 30 seconds. During the incident, she did not call, or motion to, the Respondent or Sergeant Giorgi that they should leave the desk and come over to stop Grimes and Hines. After the incident, she returned to her own desk. She did not go to the Respondent or Sergeant Giorgi and tell them that Grimes had made racial remarks. Horton testified that she and Hines are not friends. Horton acknowledged that although Hines calls her by her nickname, Grimes and the Respondent do not call her "Trellie." Hines has never complained to Horton about Grimes. In August, 2005, Horton wrote down some notes about what she heard on July 22, 2005. [Respondent's Exhibit (RX) A][These notes include the remarks Horton testified about and also quote Grimes calling Hines "a fat bitch" and stating "you fat black bitch keep mopping."]

Wanda Hines

Hines, who has retired from the Correction Department, testified that on July 22, 2005, she was a Correction Officer assigned to the Queens Court Division's Central

Booking area. At about 0730 hours, she entered the "PD (Police Department) side" of the Central Booking area because she was escorting a male prisoner who needed to use the bathroom. The prisoner entered the bathroom but he immediately came back out and told Hines that a police officer inside the bathroom had told him to "get the fuck out." Hines testified that she stood outside the bathroom with the prisoner and that "after a while," Grimes came out of the bathroom. Grimes immediately asked Hines, "What the fuck are you looking at?" Hines testified that she responded, "I'm trying to find out what the fuck I'm looking at." Grimes told Hines, "Fuck you, you black bitch." Hines responded, "Your mother." Grimes told Hines, "Fuck you, you fat 800 pound fat bitch. Keep mopping." Grimes sounded "very upset" and Hines had no clue as to why he was so upset with her.

During this verbal exchange, Hines saw the Respondent and a "new" sergeant, whose name she could not recall, seated at the desk. She estimated that the distance from the desk to the men's bathroom was "maybe two feet." Hines testified that the Respondent was "just sitting there" looking at her and Grimes.

Hines was asked if Grimes had ever previously directed similar epithets at her. She testified that on a prior occasion when Grimes had walked on a floor she had just finished mopping, she had told Grimes, "You're on the floor," and Grimes had responded by mumbling "little things" such as "fuck you," but Grimes had never previously called her a "black so and so."

After this verbal exchange, Hines returned to the Correction Department side of the Central Booking area and reported what the Respondent had said to her to Captain Harper, her supervisor. Harper told her that she would have to prepare a report about the incident. Harper and Hines walked together over to the Police Department side of the

Central Booking area and Hines watched as Harper engaged in a conversation with the Respondent. Hines did not overhear any of the conversation and Harper did not immediately tell her what was said. Hines did not ask the Respondent to come over to speak to her. Instead, she made a "come here" motion by bending her index finger toward her indicating that she wanted the Respondent to walk over to her. He did not come over.

She related what Grimes had said to her to Police Officer Howard Tyson who advised her to "just handle it." She was interviewed by the Duty Captain and she reported this incident to IAB that same day.

On cross-examination, Hines testified that she felt that the Respondent had been "nasty" and "arrogant" toward her because he would not speak with her. She testified that the Respondent had to have heard the racial remarks Grimes directed at her because when Grimes began "shouting" at her "the place got quiet," and because the desk where the Respondent was standing was only "two feet away." Harper later told her that the Respondent had stated that he had believed that Grimes and Hines were only joking with each other.

She testified that Harper did not direct her to report the incident to IAB and that she only reported it to IAB because "a police officer and other civilians" encouraged her to do so. The Civilian Complaint Review Board (CCRB) investigated her allegation against Grimes.

Paulette Harper

Harper, who retired from the Correction Department in April, 2007, testified that on July 22, 2005, she was a captain assigned to the Queens Court Division. She recalled

that Hines telephoned her and told her that Grimes had just called her “a 600 pound black gorilla” and told her to “keep mopping” and that he had uttered these remarks while the Respondent was present.

Harper walked over to the Police Department side of the Central Booking area and told the Respondent, “I understand you witnessed part of it.” The Respondent told her that he had heard what Grimes and Hines had said but that it was not serious and he thought they had been joking with each other. Harper told the Respondent that Hines had not been joking with Grimes and that Hines was very upset about what Grimes had said to her. Harper recommended that mediation be conducted with Grimes and Hines but the Respondent “refused to mediate.” Harper told the Respondent that Grimes had made comments about Hines’ “gender, race and size.” The Respondent told Harper, “They were playing with each other. It will blow over.”

On cross-examination, Harper testified that she prepared a report regarding the incident for her commanding officer. In this report she wrote, “Officer Hines reported that Police Officer Grimes used foul language and made derogatory comments degrading to her race, gender and physical appearance. After speaking to CO Hines I approached Lieutenant Goldberg who had been in the area at the time and had witnessed at least some of the incident. The Lieutenant indicated that he hadn’t taken the incident very seriously. However, CO Hines was very upset. A civilian PAA, Ms. Trellis Horton, then approached me and stated she had witnessed the incident and could and would corroborate Officer Hines statements.” (RX B)

The Respondent's Case

The Respondent called Police Officers James Grimes and Howard Tyson, Fire Department Emergency Medical Technician Nora Murphy, and Sergeant Dean Giorgi as witnesses and the Respondent testified on his own behalf.

Police Officer James Grimes

Grimes, who is presently assigned to Highway 2, testified that he was inside the men's bathroom when he heard banging on the entrance door. When he came out, he saw Hines holding a broom handle. He asked her, "What is your problem? Why are you banging on the door with a broom handle?" She responded that she "had to hurry up and get there" because she "had to mop" and she needed to "use the slop sink." He told her, "You could have waited. If you have to act unprofessional, do you have to come across that way?" She began cursing at him and he told her that "she was acting unprofessional" and "out of line." He testified that their voices were "above normal level." He turned away from her, walked over to the desk, which was about 20 to 25 feet away, and sat down behind the desk. He was not interviewed by the Duty Captain that day.

On cross-examination, Grimes testified that as a result of his verbal interaction with Hines he was issued a Schedule B Command Discipline (CD) for discourtesy and using offensive language. He signed this CD and forfeited seven vacation days. Grimes was confronted with statements he made during his interview at CCRB on October 27, 2005. He agreed that he had told his CCRB interviewer that after his interaction with Hines, he had approached the Respondent and Sergeant Giorgi at the desk and that he asked them, "Did you see what just happened? Did you see her bang on the door with a broom handle?" They told him, "We saw it."

Police Officer Howard Tyson

Tyson, who was assigned to Queens Court Section and who was on duty on July 22, 2005, testified that he was working at a computer terminal "around the corner" from the men's bathroom when he heard a verbal commotion about 15 feet away from him. Because the words the parties uttered during this "altercation" were "muffled" and "not clear," he could not make out what was being said. He had no conversation with the Respondent about this altercation. Hines told him that she had tried to get the Respondent's attention but that he had ignored her.

Emergency Medical Technician Nora Murphy

Murphy testified that she is familiar with Hines because she has often heard Hines speaking in a "loud, boisterous" voice and because Hines regularly uses profanity. Murphy recalled that she was present at Queens Central Booking on July 22, 2005. She testified that she saw Hines banging on the door of the men's bathroom with "a stick." She heard Hines utter the word "fuck." Murphy did not hear Grimes' voice and she did not hear any racial or sexual language.

Murphy testified that shortly afterwards, as she was about to walk through a doorway to go outside to have a cigarette, Hines came through the door with "her captain." Hines called out to the Respondent, "Hey, you, come over here," as she made a "come here" motion with her index finger. Murphy heard the Respondent tell Hines, "If you are referring to me, I'm Lieutenant Goldberg or sir." Murphy testified that Hines then

turned to "her captain" and said, "You see what I told you? They are all motherfucker white racists." Murphy testified that she then went outside.

Sergeant Dean Giorgi

Giorgi testified that July 22, 2005, was his second day assigned to the Queens Court Section as the desk supervisor. The Respondent was at the desk standing to his left when Giorgi heard Hines curse at Grimes. Grimes cursed back at her. Giorgi believed that Hines and Grimes "were joking around." Grimes then told Hines, "Why don't you just get back to work." Giorgi testified that since neither Hines nor Grimes had used any racially or sexually offensive language, he did not believe that it was necessary to make any notifications. He recalled that a Department of Correction captain came over had a private conversation with the Respondent in the hallway. Giorgi did not hear any of this conversation. Later, the Duty Captain arrived at the Queens Court Section.

On cross-examination, Giorgi testified that as a result of the interaction between Grimes and Hines, he was issued a Schedule B CD for failure to supervise. He signed this CD and forfeited two vacation days. He testified that when he adjudicated this CD, he considered it a plea of guilty that he had failed to properly supervise Grimes.

The Respondent

The Respondent testified that he is assigned as the platoon commander for the day tour at the Queens Court Section and that he supervises approximately 50 uniformed and civilian members and that about ten of these members work at or near the desk in Central Booking. His commanding officer has directed that he spend most of his time at the desk,

rather than at the intake area. He interacts with numerous employees of other criminal justice agencies, including the Department of Correction. On most mornings at about 7:30 a.m. when he is working at the desk, because there is a lot of human traffic, including prisoner movement, around and near the desk, there is a lot of background noise, as there normally is at commands during change of tours. He measured the distance from the desk to men's room door, which is 26 feet. The men's room door is visible from the desk because the desk is located in an open area.

The Respondent testified that he is familiar with Hines and he described her usual demeanor as "very loud" and "very obnoxious." She frequently uses the word "fuck" and she is "very pushy, particularly with prisoners" under her control whom she treats in a much more "condescending" and "rude" fashion than other correction officers. He described Grimes as a "stern" officer who properly takes control of prisoners. The Respondent testified that Grimes does not commonly use profanity.

On July 22, 2005, at about 7:30 a.m., he was working at the desk with Giorgi and, as usual, there was "background noise." He recalled that he heard "a conversation or argument or altercation or whatever we want to call it" between Grimes and Hines. When it started sounding "somewhat contentious," the Respondent "started focusing on it pretty much exclusively." The Respondent was asked, "When you ultimately focused on the language, what did you hear?" He answered that he could not "remember any specifics," except that, "near the end of their argument," Grimes told Hines, "Why don't you just go sweep over there" and "sweep over here too." He did not hear any racial or sexual comments. The Respondent testified that "at the very end" of the verbal exchange between Grimes and Hines "when they separated without laughing and without smiling at

each other” or “saying, ‘Bye, see you later,’” is “when I knew there was a problem” and that is when he first became certain that it was an argument, not merely verbal “horseplay.” He “called Grimes over” and “gave him a few minutes to calm down.” He then asked Grimes what had happened and Grimes related that while he was inside the men’s room Hines had knocked on the door with some kind of a stick and that they had then argued but that it was now over. The Respondent testified that based on what Grimes told him, he did not ask anyone else what they had heard

Harper came over from the Department of Correction side of the Central Booking area and asked him, “What happened?” Harper told him that she “wanted to get both sides of the story.” He told her what Grimes had told him. He asked her, “What did Hines tell you?” Harper responded, “She didn’t tell me all that.” Harper did not tell him that Hines had alleged to her that Grimes had made any sexual or racial comments.

Hines, who was standing a distance away, called out to him, “Come over here.” The Respondent told Hines, “You can’t beckon me like a dog.” Hines then stated, “They’re all racists.” When Hines then “stormed off,” he asked Harper, “What was that all about?” A couple of hours later, Giorgi informed him that the Duty Captain had called to say he was responding to the command regarding the altercation between Grimes and Hines. Before the Duty Captain arrived, the Respondent learned from PAA Horton that Grimes had directed racial comments at Hines. When the Respondent was asked whether he was surprised when PAA Horton asserted that racial comments had been made during the verbal altercation between Grimes and Hines, he answered, “a little bit,” because he had not heard any racial comments. On cross-examination, the

Respondent testified that he never asked Hines what Grimes had said to her. He did not believe that he was prohibited from asking Hines to tell him her version of the event.

FINDINGS AND ANALYSIS

The Respondent is charged with failing to supervise Grimes, a police officer who was under his supervision, in that he became aware of a verbal altercation between Grimes and Hines, a Correction Officer, and failed to investigate the matter himself or make appropriate Department notifications.

I find the Respondent Guilty based largely on the admissions he made during his testimony at this trial. The Respondent acknowledged that he considers Hines very loud, obnoxious and pushy, that she treats prisoners in a condescending and rude fashion and that she regularly uses profanity. Moreover, the Respondent asserted that Hines had addressed him in a discourteous manner and had showed no respect for his rank when she “beckoned me like a dog” by telling him “come over here.”

The Respondent also acknowledged that at the end of the verbal exchange between Grimes and Hines (when they separated without laughing or smiling or saying, “See you later”), he was certain that their verbal exchange had been an argument and he “knew there was a problem.” The Respondent further acknowledged that Grimes was in such an angry mood after his verbal altercation with Hines that he had to give him some time to calm down, and that Hines was so angry at Grimes that her supervisor came over to ask the Respondent what Grimes had said to Hines to upset her so much.

However, even though the Respondent was aware that an angry verbal exchange had taken place between a police officer and a correction officer, the Respondent

admitted that the only action he took to ascertain what Grimes had said to Hines was to ask Grimes what he had said. As an experienced supervisor, the Respondent was aware that it was unlikely that Grimes would admit to him that he had said anything to Hines that Grimes knew could get him in trouble. Nonetheless, the Respondent asserted that he had relied solely on Grimes' version of what he had said and that he did not ask Hines what Grimes had said to her, even though he believed that nothing prohibited him from asking her, nor did he ask any member of his own command what they had heard. Thus, until he learned that the Duty Captain was coming to the command, the Respondent had only asked Grimes about what words were exchanged during the altercation.

The Respondent's claim that he did not hear any racial or sexual comments is inconsistent with his testimony that when the argument between Grimes and Hines started sounding "contentious," he "started focusing on it pretty much exclusively." Also, although he was focused on the language they were using, he could not "remember any specifics," except that, "near the end of their argument," Grimes (a man) told Hines (a woman), "Why don't you just go sweep over there," and to "sweep over here too."

Even if I credited the Respondent's claim that he did not personally hear Grimes make a racial comment, I can only conclude that the Respondent suspected that Grimes had directed racial comments at Hines. The Respondent testified that when he refused to comply with Hines' demand that he "come over here" and speak to her about Grimes, Hines had declared, "They're *all* racists (emphasis added)," implying that Grimes had injected race into their argument. That the Respondent at least suspected that Grimes had directed racial comments at Hines is also reflected by his admission that he was only "a

little bit" surprised when Horton told him that she had heard Grimes making racial comments during the altercation.

I can only conclude that the Respondent's dislike of Hines clouded his judgment regarding the proper handling of this incident and resulted in his failure to follow mandated Patrol Guide procedures by fully and properly investigating the matter himself or making appropriate Department notifications.

The Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on June 30, 1995. Information from his personnel folder that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Respondent has been found Guilty of failing to supervise a police officer under his supervision, in that he became aware of a verbal altercation between the police officer and a correction officer and failed to investigate the matter himself or make appropriate Department notifications.

It is recommended that the Respondent forfeit five vacation days.

Respectfully submitted,

APPROVED

JUN 17 2009
RAYMOND W. KELLY
POLICE COMMISSIONER



Robert W. Vinal
Assistant Deputy Commissioner - Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
LIEUTENANT ROBERT GOLDBERG
TAX REGISTRY NO. 915809
DISCIPLINARY CASE NO. 82266/06

The Respondent received an overall rating of 4.0 on his two most recent annual performance evaluations. He has been awarded one Excellent Police Duty medal. He has no prior formal disciplinary record.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner - Trials